

FORMAL CORRESPONDENCE

Response to Hughes Fowler Carruthers LLP

Request for Custody Confirmation — Imerman Devices

Judicial Review: Zahmoul v Secretary of State for Justice & HMCTS

Administrative Court Reference: AC-2025-LON-004293

From: Nadia Zahmoul

To: Mark Harper, Hughes Fowler Carruthers LLP

Date: 12 January 2026

Subject: Request for clarification of custody and disposition of Imerman devices

Dear Mr Harper,

Thank you for your email of 9 January 2026.

Your response raises serious public law concerns which require clarification.

The fact that your firm “has not acted for the Respondent for several years” is not responsive to the issue raised. The question is not one of elapsed time, but of custody, chain of custody, and compliance with court-ordered Imerman procedures in respect of electronic devices known to contain material of evidential and potential criminal relevance. Where devices are taken into custody pursuant to court process, the passage of time does not extinguish duties relating to safeguarding, preservation, review, and lawful disposal.

Your statement that the Imerman material is “no longer in the possession of this firm” therefore gives rise to a further and urgent issue: on whose authority, by what mechanism, and following what review process the devices ceased to be held, and whether this occurred in compliance with the applicable duties once criminal relevance had been notified.

The suggestion that “the Respondent will be able to explain” is also concerning. The Respondent is not the custodian of the devices for the purposes of this inquiry. This is not a private dispute between parties. It concerns a systemic failure in the handling of evidential material, now the subject of a live Judicial Review (Administrative Court reference AC-2025-LON-004293).

Responsibility for the handling of Imerman material is clearly defined in law. Once electronic devices are taken into custody pursuant to court process, responsibility for safeguarding, preserving, and ensuring lawful review rests with the custodian and, ultimately, the State bodies responsible for oversight and administration of the process. That responsibility does not transfer to a party, and it cannot be displaced by reference to the Respondent. To do so is a deflection from the legally defined custodial duties that apply in these circumstances.

For the avoidance of doubt, I am not asking the Family Court (or any court office) to investigate or prosecute criminal allegations. I am asking for a custodial account of court-controlled evidential material: whether a lawful Imerman review was completed, and—if the devices left your firm’s possession—when, how, to whom, and under what authority.

This issue is now squarely engaged on the record in the Administrative Court proceedings, where the Defendants’ filed position acknowledges (i) that the devices were identified as “Imerman devices” (a MacBook Pro and an “Ubuntu Computer”) held in escrow, (ii) that criminal relevance was raised, and (iii) that the court-appointed crypto Single Joint Expert did not copy the Respondent’s legal team into the relevant email expressly because doing so “may jeopardise any ongoing criminal investigation”.

It is also necessary to be explicit about the seriousness of the material at issue. The devices contained evidence indicating money laundering of proceeds of prostitution through cryptocurrency assets. A criminal referral made on the basis of limited access to that material resulted in an ongoing criminal investigation by the U.S. IRS: Criminal Investigation Division.

The existence of this criminal evidence, and its U.K. nexus, was formally notified at multiple stages, including to the Master of the Rolls (December 2023), the court-appointed crypto Single Joint Expert (February 2024), the Lord Chancellor (April 2024), the High Court (April 2024), Members of Parliament (May 2025), the Court of Appeal, and again in the Pre-Action Protocol correspondence. The open solicitors' correspondence demonstrates that the criminal relevance of the devices was a known fact and leaves no doubt as to your firm's responsibilities under the applicable legal framework. There were repeated warnings, the seriousness of the evidence was understood, and it was expressly raised in both my written statements and oral evidence. This was a grave and entirely avoidable failure. The responsibility for addressing it lies with the custodian and the State, not with a private individual. The matter plainly engages the public interest and requires Parliamentary scrutiny.

As you are aware, a Notice confirming that a Judicial Review has been filed in respect of failures in the handling of criminal evidence has been placed in the public domain. For transparency and scrutiny, the evidential record (including contemporaneous correspondence, timelines, and indices) is publicly accessible at:

<https://github.com/nadiazahmoul/JR-Zahmoul-v-SSJ-HMCTS-Archive>

For convenience—recognising that not all recipients will access the public repository—I also attach a limited selection of documents evidencing the chronology of notice, the acknowledged legal duties, and the unresolved custodial position.

In the interests of transparency and public accountability, a press update will be issued to accredited media outlets to reflect recent developments in the Judicial Review and the unresolved custody issues concerning the handling and loss of material evidence.

In circumstances where adverse findings were made against me in the family proceedings, the disappearance or non-review of material evidence which was repeatedly flagged as critical and criminally relevant raises issues of procedural fairness, equality of arms, and the integrity of the justice system. These are not matters capable of being resolved informally or retrospectively.

Given the public interest engaged, and the implications for confidence in the administration of justice, this is now a matter which properly falls for **state accountability** and, if necessary, **Parliamentary inquiry**.

I would therefore be grateful if you would confirm, on the record:

- 1) when and on what authority the Imerman devices left your firm's custody;
- 2) whether any review compliant with Imerman principles was completed prior to that point; and
- 3) to whom the devices were transferred or returned.

I am copying this correspondence to the Defendants in the Judicial Review, the Administrative Court, and the House of Commons Justice Committee.

Yours sincerely,
Nadia Zahmoul
Nadia Zahmoul

Claimant — **Judicial Review AC-2025-LON-004293**